

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Ella Mintz	Team: Squad #01	CCRB Case #: 201804909	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Monday, 10/09/2017 11:15 PM	Location of Incident: Inside of the MTA Subway station at East Gun Hill Road	18 Mo. SOL 4/9/2019	Precinct: 47		
Date/Time CV Reported Wed, 06/20/2018 3:48 AM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Wed, 06/20/2018 3:48 AM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Robert Marzano	17220	958887	TB ATU
2. POM Nataniel Yusupov	16644	958187	TB ATU

Officer(s)	Allegation	Investigator Recommendation
A . POM Robert Marzano	Abuse: Police Officer Robert Marzano stopped § 87(2)(b)	A . Unsubstantiated
B . POM Nataniel Yusupov	Abuse: Police Officer Nataniel Yusupov stopped § 87(2)(b)	B . Unsubstantiated
C . POM Robert Marzano	Abuse: Police Officer Robert Marzano frisked § 87(2)(b)	C . Unsubstantiated
D . POM Robert Marzano	Abuse: Police Officer Robert Marzano searched § 87(2)(b)	D . Unsubstantiated

Case Summary

On June 20, 2018, § 87(2)(b) filed this complaint on the CCRB's website.

On October 9, 2017 at approximately 11:15PM inside the subway station located at East Gun Hill Road in the Bronx, § 87(2)(b) was stopped by Police Officers Robert Marzano and Nataniel Yusupov, of the Transit Bureau Anti-Terrorism Unit (**Allegations A and B- Abuse of Authority: Unsubstantiated**). PO Marzano allegedly frisked and searched § 87(2)(b) (**Allegations C and D-Abuse of Authority: Unsubstantiated**).

§ 87(2)(b) was arrested § 87(2)(a) 160.50. There is no video footage of this incident. Video footage could not be obtained from the MTA because the CCRB received this case eight months after the incident date. § 87(2)(g)

Findings and Recommendations

Allegation A-Abuse of Authority: Police Officer Robert Marzano stopped § 87(2)(b)

Allegation B-Abuse of Authority: Police Officer Nataniel Yusupov stopped § 87(2)(b)

Allegation C-Abuse of Authority: Police Officer Robert Marzano frisked § 87(2)(b)

Allegation D-Abuse of Authority: Police Officer Robert Marzano searched § 87(2)(b)

§ 87(2)(b) testified that at the time of the incident, he had a knife on his person but that the knife was folded up inside his front right jeans pocket, was not sticking out of the pocket, and did not create a bulge in his pants (Board Review 01). The knife was a black Buck knife with a blade that was two-three inches long; the knife has a button that you have to press in order to open the knife. § 87(2)(b) did not know what a gravity knife was but believed that his knife may have been a gravity knife because it was referred to it as such in the criminal court complaint stemming from this incident.

§ 87(2)(b) was walking down the stairs after exiting the subway when he noticed PO Yusupov waving in a "come here" gesture; § 87(2)(b) did not think this gesture was intended for him but when he finished walking down the stairs, PO Yusupov tapped § 87(2)(b) on the shoulder and asked him to sit on a bench. After approximately five minutes, PO Marzano told § 87(2)(b) to stand and that he needed to search him. § 87(2)(b) told PO Marzano that he did not consent to a search. PO Marzano handcuffed § 87(2)(b) and patted § 87(2)(b)'s chest, his back and up and down his arms. PO Marzano then reached into § 87(2)(b)'s right front jeans packet and pulled out the knife. PO Marzano said, "Hey, this is a gravity knife. You can't have this." PO Marzano did not make any remarks about the knife prior to pulling it out. PO Marzano then went into § 87(2)(b)'s other jeans pockets, pulling out his wallet, taking his ID, and then putting it back in his pants. PO Marzano then patted down the rest of § 87(2)(b)'s legs. § 87(2)(b) was transported to the Transit District 12 stationhouse, where he was arrested for § 87(2)(b).

§ 87(2)(g) Both officers estimated that they were approximately five to ten feet away from § 87(2)(b) when they first noticed § 87(2)(b) as he was walking down the stairs. § 87(2)(b) had a visible knife clip clipped onto his front right pocket; the top of the knife was sticking out of the pocket and the rest of the knife created a

visible bulge in § 87(2)(b)'s pocket. PO Marzano then stopped § 87(2)(b) and asked him to come to the side. At the time when they observed the knife, neither officer knew what kind of knife § 87(2)(b) was carrying; the decision to stop him was because carrying a knife on the subway is a violation of the transit code.

PO Marzano stated that upon stopping § 87(2)(b) he immediately reached into § 87(2)(b)'s pocket and removed the knife for safety reasons. When PO Marzano asked § 87(2)(b) why he had the knife, § 87(2)(b) could not provide an answer. A field test revealed that the knife was a gravity knife, meaning that it could be opened by the sheer force of gravity. Both PO Marzano and PO Yusupov testified that PO Marzano did not frisk § 87(2)(b) prior to retrieving the knife from him and that PO Marzano conducted a frisk after § 87(2)(b) was already deemed to be arrested for possessing the knife.

People V. Debour allows officers to stop individuals for whom they have a reasonable suspicion are engaged in criminal activity and a frisk can only be conducted if the officer reasonably suspects the individual is armed (Board Review 04). An officer may seize an observed knife when engaged in a lawful common law inquiry, even if the officer has no reasonable suspicion to believe that the knife is a gravity knife. People v. Miranda 19 N.Y.3d912 (Board Review 05). Section 1050.8 of The MTA rules of conduct state that “no weapon, dangerous instrument, or any other item intended for use as a weapon may be carried in or any MTA facility” (Board Review 06). Patrol Guide Procedure 208-03 states that once an arrest has been effected, an officer must immediately search and frisk the prisoner.

§ 87(2)(g)

It is therefore recommended that **Allegations A, B, C, and D** be closed as **unsubstantiated**.

Civilian and Officer CCRB Histories

- This is the first complaint to which § 87(2)(b) has been a party.
- Police Officer Robert Marzano has been a member of service for three years and this is the first case in which he is a subject officer.
- Police Officer Nataniel Yusupov has been a member of service for three years and this is the first case in which he is a subject officer.

Mediation, Civil and Criminal Histories

- This case was not suitable for mediation.

- § 87(2)(b) filed a Notice of Claim with the City of New York claiming an illegal stop, frisk, search, and seeking \$20,000 as redress (Board Review 07). A 50-H hearing was scheduled for § 87(2)(b) but § 87(2)(b) did not appear for the hearing and as of September 26, 2018, the hearing has not been rescheduled.

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]
[REDACTED]
[REDACTED]

Squad No.: _____

Investigator: _____
Signature Print Title & Name Date

Squad Leader: _____
Signature Print Title & Name Date

Reviewer: _____
Signature Print Title & Name Date